



CHAPTER xcvi.

An Act to authorise the urban district council of New Hunstanton to acquire land for water and gas purposes to construct an outfall sewer and to make further provision in regard to the health local government improvement and finance of the urban district and for other purposes. A.D. 1903.

Hunstanton to acquire land for water and gas purposes to construct an outfall sewer and to make further provision in regard to the health local government improvement and finance of the urban district and for other purposes.

[21st July 1903.]

WHEREAS the urban district of New Hunstanton in the county of Norfolk is an urban district within the meaning of the Local Government Act 1894 and is under the control and management of the urban district council of that district (in this Act referred to as "the Council") :

And whereas the Council own the waterworks and gasworks which supply water and gas throughout the district and adjoining places and it is expedient that the provisions contained in this Act with reference thereto should be sanctioned :

And whereas by an indenture of lease made the twenty-fifth day of November one thousand eight hundred and seventy-two between Hamon Styleman le Strange of the one part and the Hunstanton Water Company Limited (herein-after called "the water company") of the other part it was witnessed that the lessor in consideration of the issue to him of forty B shares of the water company did demise and lease to the water company certain lands in the parish of Hunstanton shown upon the plan annexed to the said indenture and therein described together with certain way-leaves for mains and pipes also shown upon the said plan for the term of ninety-nine years from the fifth day of June one thousand eight hundred and seventy-one and after certain covenants by the water company therein set forth and certain other covenants by the lessor therein contained he for himself his heirs executors and

A.D. 1903. administrators did covenant with the water company that they should have the exclusive privilege of taking water from the springs and ponds in such covenant mentioned and also that he would concur at any time if required by the majority in value of the A shareholders in obtaining parliamentary powers for carrying out or continuing the objects of the water company or for the future extension thereof :

And whereas by an indenture made the second day of February one thousand eight hundred and seventy-four between the said Hamon Styleman le Strange of the one part and the water company of the other part after reciting the lease of the twenty-fifth day of November one thousand eight hundred and seventy-two and that the company had completed the works so far as was necessary for the supply of water within the district in the said lease mentioned and that large numbers of additional houses were then in course of erection and that further additional houses were likely to be thereafter erected and that the parties thereto had agreed to alter or vary the provisions of the said lease of the twenty-fifth day of November one thousand eight hundred and seventy-two it was witnessed that in pursuance of the said agreement the lessor for himself his heirs executors and administrators covenanted that he would not during the term granted by the said lease of the twenty-fifth day of November one thousand eight hundred and seventy-two grant the use of or any supply of water from any ponds streams springs or other means of water supply on any part of his property in the parish of Hunstanton or on any adjoining property of the lessor to any person or persons company or body corporate other than the water company their successors or assigns to be by such person or persons company or body corporate used for water supply by way of sale or for profit to any person or persons occupying any house buildings or land within the parishes of Hunstanton and Barrett Ringstead and would not during the same term grant any wayleave or permission to lay mains or pipes for the conveyance of water to be supplied by way of sale or for profit within the parishes last aforesaid to any person or persons company or body corporate other than the water company their successors or assigns And also would during the said term so far as he lawfully could prevent all persons companies or bodies corporate and all owners lessees or occupiers for the time being of any part of his property in the said parishes of Hunstanton and Barrett Ringstead except the water company their successors or assigns from constructing making or using any wells or works for the supply of water by way of sale or

for profit or to any person or persons other than himself or the occupier or occupiers for the time being of any house or building bonâ fide belonging to him and only whilst the same should remain his property or the property of his heirs executors or administrators :

And whereas by an indenture made the seventh day of September one thousand eight hundred and eighty-one between the said Hamon le Strange of the one part and the water company of the other part it was witnessed in pursuance of an agreement therein contained that from and after the date of the now reciting indenture the A and B shares of the water company should cease to exist and that all shares should be ordinary shares of the water company :

And whereas since the date of the recited indentures part of the parish of Hunstanton has been formed into a parish under the title of New Hunstanton which now forms the district of the Council and the area referred to in the said indentures as the parish of Barrett Ringstead has been divided between the parishes of Hunstanton and New Hunstanton :

And whereas by an indenture of lease made the first day of August one thousand eight hundred and seventy-two between the said Hamon le Strange of the one part and the Hunstanton Gas Company Limited (herein-after called " the gas company ") of the other part it was witnessed that the lessor did thereby demise and lease to the gas company their successors and assigns certain lands shown upon the plan annexed thereto and therein described to hold for the term of ninety-nine years from the seventh day of March one thousand eight hundred and seventy-one and after certain covenants by the gas company and certain other covenants by the lessor therein contained he for himself his heirs executors and administrators did thereby covenant that he would concur at any time if required by the majority in value of the other shareholders of the gas company in obtaining parliamentary powers for carrying out or continuing the objects of the gas company or for the future extension thereof :

And whereas the Council under powers conferred by the New Hunstanton Water and Gas Act 1897 (herein-after called " the Act of 1897 ") have purchased the undertakings of the water company and the gas company and the rights and interests of the water company and the gas company under the said indentures have become duly vested in the Council by transfer from the Hunstanton Water and Gas Company in whom they were vested under the provisions of the Hunstanton Water and Gas Act of 1897 :

A. D. 1903.

And whereas upon the lands described in the said indentures waterworks and gasworks and other works have been constructed by the Council or their predecessors in title and it is expedient that the Council should be authorised to acquire the reversionary interest in the said lands and works expectant on the expiration of the terms granted by the said leases respectively :

And whereas it is expedient that the Council be authorised to acquire lands and construct additional works for the purposes of their water and gas undertakings as in this Act provided :

And whereas by an indenture of lease dated the eleventh day of February one thousand nine hundred and three the Council became the lessees of the foreshore and sea-beach in the parish of New Hunstanton and in such part of the parish of Heacham as is comprised in the district of the Council as therein described for a term of which seventy-six years or thereabouts are now unexpired :

And whereas in connexion with the purchase of the undertakings of the water company and the gas company the Council have been obliged to pay the following sums to the Hunstanton Water and Gas Company over and above the sums contemplated and provided for by the Act of 1897 (that is to say) :—

£ s. d.

For new mains put in by the Hunstanton

Water and Gas Company under agree-

ment with the Council - - - - 527 16 3

For stamp duty - - - - 100 0 0

And whereas it is expedient that the Council should be authorised to borrow the total of the said sums as in this Act provided :

And whereas the Council have borrowed on security of their water undertaking and the district fund and general district rate of the district for waterworks purposes the sum of twenty thousand nine hundred and forty-four pounds six shillings and sixpence of which the sum of nineteen thousand six hundred and seventy pounds two shillings and sevenpence is still owing and upon the security of their gas undertaking and the district fund and general district rate of the district for gas purposes the sum of ten thousand seven hundred and twenty-five pounds five shillings and elevenpence of which the sum of ten thousand and twelve pounds seven shillings and elevenpence is still owing :

And whereas it is expedient that the Council should be invested with further powers in connexion with the seashore and recreation grounds within the district as in this Act provided :

And whereas the Council have adopted Part III. of the Public Health Acts Amendment Act 1890 and the Infectious Disease Prevention Act 1890 : A.D. 1903.

And whereas it is expedient that further and better provision should be made with reference to buildings streets and sanitary matters and for the health government and improvement of the district and that the powers of the Council in relation thereto should be enlarged and extended :

And whereas it is expedient that the Council should be authorised to borrow money for the several purposes in this Act mentioned :

And whereas it is expedient that the other provisions of this Act should be made :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purchase of lands for and for the execution of the works by this Act authorised and such estimates are as follows :—

For waterworks and lands in connexion there-	£
with - - - - -	12000
For gasworks and lands in connexion there-	
with - - - - -	17000
For outfall sewers and works - - - - -	6000

And whereas the several works included in such estimates respectively are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the members of the Council at a meeting held on the twenty-second day of October one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in the Lynn Advertiser a local newspaper published or circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that it was expedient to promote the Bill for this Act :

And whereas such resolution was published twice in the Lynn Advertiser and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the members of the Council at a further special meeting held in pursuance of a similar notice on the sixth day of February one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

A.D. 1903.

And whereas the owners and ratepayers of the district by resolution in the manner provided by the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken compulsorily for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Norfolk and are herein-after respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the New Hunstanton Improvement Act 1903.

Act divided
into Parts.

2. This Act is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Water.
- Part III.—Gas.
- Part IV.—Lands.
- Part V.—Outfall Sewer.
- Part VI.—Seashore.
- Part VII.—Recreation Grounds.
- Part VIII.—Streets and Buildings.
- Part IX.—Sanitary Provisions.
- Part X.—Infectious Disease.
- Part XI.—Police.
- Part XII.—Public Vehicles.
- Part XIII.—Financial.
- Part XIV.—Miscellaneous.

Incorporation
of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and not inconsistent with this Act) are incorporated with this Act namely :—

The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 :

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and section 38 relating to accounts) and the Gasworks Clauses Act 1871 (except sections 8 and 35) : A.D. 1903.

The Waterworks Clauses Act 1847 (except section 83 and the provisions thereof with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit) subject to the provisions contained in section 57 of the Public Health Act 1875 :

The Waterworks Clauses Act 1863.

4. In this Act the several words and expressions to which by the Public Health Act 1875 and by the Acts wholly or partially incorporated with this Act meanings are assigned have in this Act the same respective meanings unless there is something in the subject or context repugnant to such construction. Interpretation.
Provided that in the Acts wholly or partially incorporated with this Act for the purposes of this Act the expressions "the undertakers" and "the promoters of the undertaking" shall mean the Council. And in this Act unless the subject or context otherwise require—

"The district" means the urban district of New Hunstanton in the county of Norfolk :

"The district fund" and "the general district rate" mean respectively the district fund and the general district rate of the district :

"The Council" means the urban district council of the district :

"The surveyor" means the surveyor of the Council :

"The medical officer" means the medical officer of health of the district and includes any person duly authorised to act temporarily as such medical officer of health :

"Dairy" means and includes any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale :

"Dairyman" means and includes any cowkeeper purveyor of milk or occupier of a dairy :

"The seashore" means and includes the seashore foreshore and all the beach and sands within the district :

"The Act of 1897" means the New Hunstanton Water and Gas Act 1897 :

A.D. 1903.

“Recreation ground” includes the promenades and any public park garden pleasure or recreation ground or open space for the time being belonging to or under the control or management of the Council whether or not the same may be wholly or partly covered with water :

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district :

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction thereof :

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock or other security (not being an annuity rentcharge or security transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or of any other local authority as defined by section 34 of the Local Loans Act 1875 but does not include any security of the Council :

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “sky sign” shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement ;

(2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend

in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported; A.D. 1903.

- (3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach or premises belonging to a railway company and so placed that it cannot fall into any street or public place.

5. Save as in this Act otherwise provided the limits for the exercise of the several powers by this Act conferred shall be the district. Limits of Act.

PART II.

WATER.

6. Section 4 of the Act of 1897 is hereby repealed and the limits for the supply of water (in this Act referred to as "the water limits") for the purposes of this Act and the Act of 1897 shall be the district and the parishes of Hunstanton and Great Ringstead in the county of Norfolk. Water limits.

7. Subject to the provisions of this Act the Council may at any time after the passing of this Act purchase and acquire from the owner thereof the reversion in fee simple of and in any lands springs rights and easements demised and granted to the Council or their predecessors in title by the herein-before recited leases and in consideration of the payment of two hundred pounds to the owner of the said reversion The said reversion shall upon such payment vest in the Council and the said owner shall upon such payment execute and do such grants conveyances assurances and things if any as may reasonably be required by the Council for the purpose of carrying this section into effect Provided that as regards the springs ponds moats and waters from which the Council has by virtue of the herein-before recited leases the right of taking water nothing in this Act shall authorise the Council to acquire otherwise than by agreement any greater estate or interest therein than a right to take in perpetuity such quantity of water as the Council are under and by virtue of the herein-before recited leases entitled to take during the term thereof Provided also that unless otherwise agreed between the Council and the said owner the Council if they acquire the said right in perpetuity under the powers of this section shall at all times maintain a reasonable Power to Council to acquire reversion to leases and for protection of water rights of Hamon le Strange.

A.D. 1903. head of water in the moats and ponds in which the said springs are to the satisfaction of the said owner or his surveyor.

Power to
make new
waterworks.

8. Subject to the provisions of this Act the Council may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and in over upon or under the lands delineated on the said plans and described in the deposited book of reference the waterworks shown on those plans together with all necessary drains pipes sluice-valves air-valves wash-outs junctions apparatus and other works and conveniences in connexion with or incidental to such waterworks. The principal waterworks herein-before referred to are the following :—

Work No. 1 The enclosing of certain lands pond stream and springs belonging or reputed to belong to Hamon le Strange situate in the parish of Hunstanton in the county of Norfolk with a wall :

Work No. 2 The construction of a new road in the said parish :

Work No. 3 A pumping main commencing at the pumping station of the Council's waterworks and terminating at the water tower also belonging to the Council.

Power to
make subsi-
diary water-
works.

9. Subject to the provisions of this Act the Council in addition to the waterworks authorised by the section of this Act whereof the marginal note is " Power to make new waterworks " may upon any land acquired or to be acquired by them for waterworks purposes make and maintain all proper and necessary embankments walls bridges roads ways streams diversions wells tanks basins gauges filters filter-beds dams sluices hatchboxes chambers bye-washes sluices weirs outfalls discharge pipes shafts adits tunnels catchwaters aqueducts culverts cuts channels conduits mains pipes stand-pipes junctions valves drains telegraphs telephones engines pumps machinery apparatus approaches fences buildings houses works and conveniences connected with the waterworks herein-before referred to or any of them or incidental thereto or necessary or convenient for conducting inspecting cleansing repairing or managing the same :

Provided that any telegraphs or telephones constructed under the authority of this Act shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster General by the Telegraph Act 1869.

Lateral and
vertical
deviation.

10. The Council in constructing the works by this Part of this Act authorised may make deviations from the lines of such

works but not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries or fences of such road shall be deemed to be such limits and they may also deviate from the levels delineated on the deposited sections to any extent not exceeding five feet upwards and seven feet downwards. Provided that no part of any line of pipes shall be constructed or laid so as to be above the surface of the ground except so far as is shown on the deposited sections or except for the purpose of crossing over a stream.

A.D. 1903.

11. When and so soon as the Council shall have constructed Work No. 1 authorised by this Act they shall construct and maintain for the purpose of enabling Hamon le Strange his tenants servants and others in Hunstanton and Ringstead to obtain a supply of water for private consumption a pump in such a position to be accessible from the outside as may be reasonably approved by the said Hamon le Strange and so constructed as to be able to deliver water at such a height that water carts can be filled from it. Such pump shall be a substantial hand pump not less than four inches diameter and shall not include any machinery for working the same by mechanical power nor the laying of any works of distribution. The Council shall also construct and maintain a trough similarly accessible from the outside at which the said Hamon le Strange his tenants servants and others can at all times water their horses and cattle.

For protection of Hamon le Strange and his tenants.

12. If the works shown on the deposited plans and authorised by this Part of this Act are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Council for executing such works or otherwise in relation thereto shall cease except as to so much thereof as is then completed but nothing in this section shall restrict the Council from renewing extending enlarging altering reconstructing or removing any of their tanks gauges drains sluices catchpits conduits culverts valves wash-outs by-washes engines pumps machinery apparatus filter beds mains pipes or other works or plant at any time and from time to time as occasion may require.

Period for completion of works.

13. Subject to the provisions of this Act the Council may take intercept collect impound use divert and appropriate for the purposes of their water undertaking all such springs streams and waters as will or may be intercepted or abstracted by means of the waterworks by this Act authorised or any of them or as may be

Power to take waters.

A.D. 1903. found in on or under any of the lands for the time being belonging to the Council.

Waterworks to form part of water undertaking of Council.

14. The waterworks by this Act authorised shall for all purposes be deemed to form part of the existing waterworks of the Council and to be comprised in the water undertaking of the Council and the Act of 1897 and any other enactments relating to the water undertaking of or the supply of water by the Council shall be deemed to extend and apply to the waterworks to be constructed and the water to be taken under the powers of this Act save so far as they may be inconsistent with the express provisions of this Act.

Power to agree as to drainage of lands.

15. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of any of the waterworks of the Council with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be diverted collected and appropriated by the Council flowing to upon or from such lands directly or derivatively into such reservoirs and works.

Rate payable by owners of small houses.

16. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Restriction of meaning of domestic purposes.

17. Notwithstanding anything in the Waterworks Clauses Act 1863 a supply of water for domestic purposes shall not include a supply of water for swimming baths.

Supply by meter in certain cases.

18.—(1) The Council shall not be bound to supply with water otherwise than by measure any building used partly as a dwelling-house and partly as a warehouse or for any trade or manufacturing purposes for which water is required or any hospital or large public institution other than a workhouse.

(2) Where a supply of water to a farmhouse is used for farming purposes the Council may require that the supply for

farming purposes shall be taken by meter but nothing in this section shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

A.D. 1903.

(3) The Council shall not charge a higher rate than one shilling and sixpence per thousand gallons for any supply by meter given under this section.

19. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than forty-eight hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to Council of connecting or disconnecting meters.

20. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Notice of discontinuance.

21. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Council not bound to supply several houses by one pipe.

22. The Council may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

23. The Council may upon any lands for the time being acquired by or leased to them for the purposes of their water undertaking erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Council in connexion with such undertaking.

Dwelling-houses for men employed on water undertaking.

A.D. 1903

Public
drinking
fountains.

24. The Council may put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering of cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such public places as the Council may think fit and every person who shall wilfully use any water so gratuitously supplied elsewhere or otherwise than as herein-before mentioned or foul such water shall for every such offence be liable to a penalty not exceeding forty shillings.

PART III.

GAS.

Gas limits.

25. The limits of this Act and of the Act of 1897 for the supply of gas (in this Act referred to as "the gas limits") shall be the district and the parishes of Hunstanton Great Ringstead and Heacham in the county of Norfolk.

Power to
construct
and main-
tain gas-
works on
scheduled
lands.

26. Subject to the provisions of this Act the Council may upon the lands described in the schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery railway sidings and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the gas limits and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

27. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Council's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

- (3) The specification shall be published twice in some newspaper circulating in the district and a copy thereof shall be kept exhibited in the office of the Council : A.D. 1903.
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Council's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council Any officer of the Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Council refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

28. Any meters slot-meters or gas fittings let for hire by the Council shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such meters slot-meters or fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

29. No penalty shall be incurred by the Council for neglect or refusal to give a supply of gas or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having

Gas fittings not to be subject to distress.

No penalty in case of unavoidable cause.

A.D. 1903. cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Council or was of so slight or unimportant a character as not materially to affect the value of the supply.

Power to lay pipes in streets not dedicated to public use.

30. The Council may upon the application of the owner or occupier of any premises within the gas limits abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to hold licences under letters patent.

31. The Council may take hold and use within the gas limits patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture production conversion utilisation or distribution of gas or of any materials or substance whether solid liquid or gaseous employed in or resulting from or otherwise connected with the manufacture production conversion utilisation or distribution of gas.

Gas consumers to give notice to Council before removing.

32. Twenty-four hours' notice in writing shall be given to the Council by every gas consumer before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed on or contained in every demand note for gas rent payable to the Council Section 32 of the Act of 1897 is hereby repealed.

Notice to discontinue supply of gas.

33. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Period of error in

34. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and

being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council or to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Council.

A.D. 1903.
defective
meters.

35. The Council may lay down place repair alter remove and renew mains pipes and culverts within the gas limits for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to
utilise pipes
for ancillary
purposes.

36. Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping in proper repair such anti-fluctuator the Council may cease to supply gas to such consumer The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluc-
tuators for
gas engines.

37. The Council may upon any lands for the time being acquired by or leased to them for the purposes of their gas undertaking erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Council in connexion with such undertaking.

Dwelling-
houses for
men em-
ployed on
gas under-
taking.

PART IV.

LANDS.

38. Subject to the provisions and for the purposes of this Act the Council may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

Power to
acquire
lands.

A.D. 1903.

Council may
acquire ease-
ments only
in certain
lands.

39. The Council may in lieu of acquiring any lands for the purpose of laying any conduits or pipes underground under the authority of this Act acquire such easements and rights in such lands as they may require for the purpose of constructing placing laying inspecting maintaining cleansing repairing conducting or managing the same and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts inclusive of those with regard to arbitration and the summoning of a jury shall apply to such easements and rights as fully as if the same were lands within the meaning of such Acts Provided always that except as to land forming part of a street nothing herein contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this proviso Provided also that as regards any lands taken or used by the Council for the purpose of laying any conduit or pipe underground the Council shall not (unless they purchase such lands and not merely easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the work have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Council.

Correction
of errors &c.
in deposited
plans and
book of
reference.

40. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Norfolk for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Norfolk and a duplicate thereof shall also be deposited with the clerk of the Council and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of the Council

respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

A.D. 1903.

41. The powers of the Council for the compulsory purchase of lands under this Act shall not be exercised after the expiration of five years from the passing of this Act.

Period for compulsory purchase of land.

42. The Council may for any of the purposes of this Act by agreement purchase or take on lease in addition to lands which they are already authorised to hold or which they may acquire under the other powers of this Act any lands not exceeding in the whole ten acres or any easement right or privilege therein thereunder or thereon (not being an easement right or privilege of water in which persons other than the grantors have an interest) but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with the water and gas undertakings of the Council or incident to or connected with the carrying into effect of any of the purposes of this Act and the undertaking in respect of which such lands shall be acquired or buildings erected shall be debited with the cost thereof.

Power to acquire additional lands by agreement.

43. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

44. Notwithstanding anything in section 175 of the Public Health Act 1875 any lands acquired by the Council in pursuance of any powers in that Act contained and not required for the purpose for which they were acquired may with the approval of and subject to such conditions as may be imposed by the Local Government Board be retained and used by the Council for any other purpose in like manner as if they had been originally acquired for such last-mentioned purpose.

Lands acquired for some purposes of Public Health Act 1875 may be used for others.

A.D. 1903.

Restriction
on taking
houses of
labouring
class.

45.—(1) The Council shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Council acquire or appropriate any house or houses under the powers by this Act granted in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the expression “house” means any house or part of a house occupied as a separate dwelling.

Power to
retain sell
&c. lands.

46. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands acquired by them under this Act and not required for the purpose for which they were acquired and may sell and exchange and dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

PART V.

A.D. 1903.

OUTFALL SEWER.

47. Subject to the provisions of this Act the Council may construct and maintain in the lines and according to the levels shown on the deposited plans and sections the following outfall sewers wholly in the district and the foreshore and sea adjacent thereto together with all necessary tanks storage and subsidiary sewers outfalls works and conveniences (that is to say) :—

Power to
construct
outfall
sewer.

(1) An Outfall Sewer (No. 1) commencing on the Green in the district by a junction with the existing sewer of the Council at a point 120 yards or thereabouts from the north-east corner of the Sandringham Hotel and passing along in front of Le Strange Terrace as far as the gasworks thence crossing the railway of the Great Eastern Railway Company to the existing settling tank belonging to the Council where it terminates :

(2) An Outfall Sewer (No. 2) commencing by a junction with the existing outfall sewer of the Council at its present termination and thence extending along the seashore into the sea in a westerly direction a length of 380 yards or thereabouts :

And the Council may thereafter maintain and use and manage all necessary and proper erections appliances tanks wells basins pumping and other engines mains buildings machinery apparatus works and conveniences for receiving pumping and conveying the sewage of the district.

48. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions shall apply and have effect unless otherwise agreed in writing under the respective common seals of the Great Eastern Railway Company (in this section referred to as “the company”) and the Council (that is to say) :—

For pro-
tection of
Great East-
ern Railway
Company.

(1) In constructing and maintaining the Outfall Sewer (No. 1) by this Act authorised where the same will pass under the railway or be upon or affect any part of the premises of the company which are shown by the colour red on the plan signed by William Patrick on behalf of the Council and by John Wilson on behalf of the company the said Outfall Sewer (No. 1) and any works in connexion therewith shall be constructed and maintained only in the subway recently constructed by the company in accordance with the provisions of a certain memorandum of agreement dated the

A.D. 1903.

1st day of August 1901 and made between the company of the first part Hamon le Strange of the second part and the Council of the third part and where the said Outfall Sewer (No. 1) and the works connected therewith will pass under the lands of the company which are shown by the colour blue on the said signed plan the same shall be constructed and maintained only in a subway to be constructed by and at the expense of the Council of like character and diameter to and in extension of the subway recently constructed as aforesaid No manhole shall be constructed or maintained on any part of the company's property without their consent in writing :

- (2) Save as is in this section provided the Council shall not under the provisions of this Act in any manner enter upon take use or interfere with either temporarily or permanently any of the lands works or premises of the company :
- (3) The Council may acquire and the company shall grant accordingly a right of using so much of the lands of the company within the limits of deviation shown on the deposited plans as may be necessary for the construction of the Outfall Sewer (No. 1) in accordance with the provisions of this section and the Council shall pay to the company for such right such annual or other sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Arbitration Act 1889 for the purposes of which Act this section shall be deemed to be a submission :
- (4) The principal engineer of the company shall be at liberty at any time to execute and do all such works and things (including the necessary excavation for the construction of the said extended subway under the land shown by the colour blue on the said signed plan and the timbering of the said land for the purpose of the construction and of any subsequent repair or renewal of the said Outfall Sewer (No. 1) and the works connected therewith) for ensuring the safety or the convenient working or use of the railway and property of the company as he may in his discretion deem necessary or proper by reason or in consequence of the construction or repair or renewal or existence of the said Outfall Sewer (No. 1) and the works connected therewith and the amount of the reasonable costs and expenses of and incident to the execution of any such

works as are referred to in this subsection (as certified by the said principal engineer whose decision shall be final and conclusive) shall be borne by the Council and paid by them to the company within two calendar months of demand in writing therefor :

- (5) If at any time or times the company shall for any purposes of their railway or any works connected therewith require any temporary or permanent variation to be made in the position of the said Outfall Sewer (No. 1) and the works connected therewith they shall be at liberty at their own cost to make the variation so required but any such temporary or permanent variation shall not be made so as to decrease the efficiency of the said Outfall Sewer (No. 1) and previous to any permanent variation the company shall give to the Council one calendar month's notice in writing and the said Outfall Sewer (No. 1) shall be relaid at such depth and in such manner as shall be approved by the engineer for the time being of the Council :
- (6) If at any time or times the company shall for the purpose of widening or improving their railway or other works in connexion with their railway or undertaking desire to execute any works or construct any buildings over the said Outfall Sewer (No. 1) or the works connected therewith they shall be at liberty to do so notwithstanding anything in this or in any other Act contained and the company shall not be reponsible for any injury that may be done to the said Outfall Sewer (No. 1) and the works connected therewith by the working or use of the railway or works of the company :
- (7) In constructing and maintaining the said Outfall Sewer (No. 1) and the works in connexion therewith and in laying down and executing or in effecting the repairs and renewals of any mains pipes or other works which the Council may be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the company or the station approaches or other works or any level or other crossings over or upon the railways of the company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the company and only according to plans and sections to be submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Council who shall also restore and make good

A.D. 1903.

any such level or other crossings and station approaches which may be disturbed or interfered with by or owing to any operations of the Council and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways level or other crossings approaches works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of the said Outfall Sewer (No. 1) or of any such mains pipes or works under or near to any such railway level or other crossing or other property the Council shall make compensation in respect thereof to the company.

Period for completion of sewers.

49. If the sewers are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Council from maintaining extending enlarging altering or renewing any of their sewers works and conveniences from time to time as occasion requires.

Power to deviate.

50. In the construction of the sewers the Council may subject to the provisions of this Act deviate laterally from the lines shown on the deposited plans to any extent within the limits of deviation defined on those plans and where in any road no such limits are shown the boundaries of such road shall be deemed to be such limits and the Council may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards:

Provided that the sewers shall not be constructed above the surface of the ground except so far as shown on the deposited sections and provided further that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Solids not to be discharged into sea.

51. Nothing in this Act contained shall authorise or empower the Council to deposit in or discharge into the sea or upon the foreshore any solid or liquid substance detrimental to sea fish and sea fishing.

Outfall to be buoyed.

52. The Council shall place and at all times properly and efficiently maintain at the seaward end of the Outfall Sewer (No. 2) a good and sufficient buoy to indicate the position of such outfall sewer.

53. For the purposes and during the execution of the sewers by this Act authorised and in maintaining the same and subject to the provisions of this Act the Council may use break up or cross over or under alter or stop up temporarily any lands streets highways roads lanes paths quays bridges railways tramways canals passages sewers drains watercourses mill leads or mill dams sluices gas pipes and water pipes electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference and which they may find it expedient for any of those purposes so to interfere with providing in all cases a proper temporary substitute before interrupting the traffic on or over any such lands street highway railway or tramway or the flow of water gas sewage or electricity in any such sewer drain watercourse canal or pipe or apparatus reinstating the same as soon as possible and making full compensation to all persons injuriously affected by the exercise of the powers of this section Provided that any interference with electric lines or apparatus shall be subject to the provisions of section 15 of the Electric Lighting Act 1882 Provided further that nothing in this section shall extend to authorise any interference with electric apparatus or other property of His Majesty's Postmaster General or with any railway or apparatus of the Great Eastern Railway Company.

A.D. 1903.

Power to
alter roads
&c. temporarily.

PART VI.

SEASHORE.

54.—(1) The Council may on any lands acquired by them for the purposes of this section and on any lands belonging to the Council and appropriated with the consent of the Local Government Board to such purposes and subject to such conditions as that Board may impose and on the bed of thesea erect maintain work and use a pumping station or stations with all necessary engines machinery works buildings and conveniences for pumping water from the sea and may construct lay down and maintain in and along the seashore and streets in the district such mains pipes and works as may be necessary or convenient for the conveyance use or supply of sea water and may use the same for public or other purposes and may supply such water for all purposes accordingly.

Sea-water
supply.

(2) The Council may for the purposes of this section break up any streets in the district but they shall not under the powers of this section enter upon any lands not vested in them except with the consent of the owners and other persons interested in such lands.

(3) The terms and conditions upon and subject to which the Council may supply sea water under the powers of this section

A.D. 1903. — shall be such as the Council shall prescribe or as shall be agreed upon between the Council and the person desiring to be supplied Provided that such terms and conditions shall be the same to all persons under similar circumstances.

Works below high-water mark not to be commenced without consent of Board of Trade.

55. The Council shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charges of the Council and the amount of such cost and charges shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

Consent of King's Lynn Conservancy Board necessary.

56. The Council shall not under the powers of this Act construct below high-water mark upon the shore or the bed of the sea or of any river or channel communicating therewith any work without the previous consent in writing thereto of the King's Lynn Conservancy Board.

Survey of works by Board of Trade.

57. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Council on in over through or across tidal lands or tidal water or of the intended site of any such work the Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Council to the Crown and be recoverable as a Crown debt or summarily.

Abatement of work abandoned or decayed.

58. If a work constructed by the Council on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and be recoverable as a Crown debt or summarily.

59. The Council may make byelaws for the regulation of the promenades for prescribing the nature of the traffic for which they may be used for regulating the selling and hawking of any article commodity or thing thereon and for the preservation of order and good conduct among the persons frequenting the same.

A.D. 1903.
Byelaws
as to pro-
menades.

60. The Council may make byelaws for the prevention of danger obstruction nuisance or annoyance to persons using the seashore and in particular may by such byelaws—

Byelaws as
to seashore.

- (1) Regulate the erection or placing on the seashore and the approaches to the seashore or on such part or parts thereof as may be prescribed by such byelaws (all of which are in this section included in the words "the seashore") of any booths tents sheds stands and stalls (whether fixed or movable) or vehicles for the sale or exposure of any article or thing or any shows exhibitions performances swings roundabouts or other erections vans photographic carts or other vehicles whether drawn or propelled by animals or persons and the playing of any games on the seashore and generally regulate the user of the seashore for such purposes as shall be prescribed by such byelaws ;
- (2) Regulate the selling and hawking of any article commodity or thing on the seashore ;
- (3) Regulate the user of the seashore for riding and driving ; and
- (4) To provide for the preservation of order and good conduct among persons frequenting the seashore.

61. The Council may make byelaws—

Byelaws as
to bathing.

- (1) For appointing and limiting the places on the seashore from which persons of each sex may bathe without using a bathing machine or tent and for prohibiting the use of any other place on the seashore for bathing without using a bathing machine or tent ;
- (2) For the preservation of decency and order at public bathing-places on the seashore and for appointing and limiting the places on the seashore from which persons of the male and female sex may bathe together and from which they may bathe separately ;
- (3) For regulating the hours during which bathing may take place from public bathing-places on the seashore and for prohibiting the use of such places except during the hours so fixed ; and
- (4) For prescribing the use of decent and sufficient bathing garments.

A.D. 1903.

Tents and
huts for
bathing or
shelter.

For pro-
tection of
bathers.

62. Section 171 of the Public Health Act 1875 and section 69 of the Town Police Clauses Act 1847 incorporated thereby shall so far as applicable extend and apply to tents and huts for bathing or shelter within the district.

63. The Council may require the owner or lessee of any bathing machine to provide or employ boats boatmen and attendants and to provide life-saving apparatus for the purpose of ensuring the safety of bathers and may prescribe the qualification of such boatmen and attendants and the Council may employ and pay boatmen for the purpose of protecting persons whilst bathing.

Saving for
pier com-
pany.

64. For the protection of the Hunstanton Pier Company (in this section called "the company") the following provisions shall have effect :—

(1) Nothing in this Act shall be deemed to prejudice or affect the rights of the company in respect of the pier and that portion of the promenade and the seashore leased by the said Hamon le Strange to the company or over which the company now have or may exercise any rights or privileges :

(2) The section of this Act of which the marginal note is "Byelaws as to promenades" shall not entitle the Council to enforce any byelaw or to exercise any of the powers conferred by the said section upon or in respect of the pier of the company or the approach thereto from the Green and the section of this Act of which the marginal note is "Byelaws as to bathing" shall not entitle the Council to enforce any byelaws respecting bathing from the pier except for the preservation of decency and order and for prescribing the use of decent and sufficient bathing garments.

Power to
licencse
pleasure
boats.

65.—(1) The Council may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or navigation of such boats and vessels and may charge for every such licence for a boat a fee not exceeding the sum of five shillings and for a boatman a fee not exceeding the sum of one shilling.

(2) Any such licence may be granted for such period as the Council may think fit and may be suspended or revoked or endorsed by the Council whenever they shall deem such suspension or revocation or endorsement to be necessary or

desirable in the interests of the public Provided that the existence of the power to suspend revoke or endorse the licence shall be plainly set forth in the licence itself. A.D. 1903.

(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed.

(4) No person shall act as boatman or assist in the charge or navigation of any pleasure boat or pleasure vessel when let for hire or when carrying passengers for hire who is not licensed by the Council as aforesaid.

(5) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade or for any boatman or person assisting in the charge or navigation of such boat or vessel.

(6) No person shall carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted on a conspicuous part of the said boat or vessel the number of persons which it is licensed to carry.

(7) Every person who shall act in contravention of the provisions of this section shall for each offence be liable on summary conviction to a penalty not exceeding two pounds.

(8) Any person deeming himself aggrieved by the granting withholding suspension revocation or endorsement of any licence under the provisions of this section may appeal to the petty sessional court held for the district after the expiration of two clear days after such grant withholding suspension revocation or endorsement Provided that the person so aggrieved shall give twenty-four hours' written notice of such appeal and the ground thereof to the clerk and the court shall have power to make such order as they see fit and to award costs to the successful party such costs to be recoverable summarily as a civil debt.

PART VII.

RECREATION GROUNDS.

66. The Council may in any recreation ground or upon the seashore erect provide maintain furnish and equip any pavilions assembly rooms reading rooms baths and other buildings which may be required or convenient for the purposes of such recreation Council
may provide
pavilions.

A.D. 1903. — ground and the public resorting thereto and may charge for admission to such buildings or any of them or in respect of the use thereof or of any part or parts thereof respectively.

Power to let pavilions or provide entertainments therein.

67. The Council may in any pavilions assembly rooms reading rooms baths or other buildings for the time being belonging to them or under their control in any recreation ground or upon the seashore provide and carry on or arrange for the provision or carrying on of suitable entertainments exhibitions and amusements or may let for any period not exceeding seven years any such building for the purpose of such entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular entertainments or exhibitions or for meetings.

Seats and chairs may be provided.

68. The Council may place or authorise any person or persons to place seats or chairs in any street recreation ground or other public place for the use of the public and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of the seats and chairs and for preventing injury or damage thereto.

Power to set apart portions of recreation grounds for games.

69. The Council may set apart any portion of any recreation ground for cricket football tennis and other games and for the drill of volunteers yeomanry or cadets or of any military or police force or for the purposes of the delivery of speeches or the holding of meetings of public or local interest but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Council may make byelaws with respect to the use of any portions of a recreation ground so set apart.

Power to provide apparatus for games.

70. The Council may provide apparatus for games and recreation for the use of the public frequenting the recreation grounds and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and the Council may make regulations with respect to the use and payment for the use of such apparatus.

Power to contribute towards band.

71. The Council may pay or contribute towards the payment of a public band of music for the district provided that the amount of such payments or contributions does not in any year exceed a sum equal to a rate of one penny in the pound on the

assessable value of the district for the purposes of the general district rate The Council may in any recreation ground or other public place enclose an area within which such band shall play and make regulations as to the time and place for the playing of the band the payment to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band Provided always that no payment or contribution shall be made under this section unless incurred in pursuance of a resolution of an absolute majority of the whole number of the Council at a meeting of the Council after seven clear days' notice of such meeting and of the intention to propose such resolution.

72. The Council may appoint officers for securing the observance of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

A.D. 1903.
Power to
appoint
officers.

73. Any moneys received by the Council in connexion with the execution of the purposes of this Part of this Act shall subject to payment of the expenses incidental to the execution of the said purposes be carried to the credit of the district fund.

Application
of moneys
received
under this
Part of Act.

PART VIII.

STREETS AND BUILDINGS.

74.—(1) The approval by the Council of any plan or section of any street or building shall be null and void if the execution of the work specified in such plan or section be not commenced and bonâ fide proceeded with within the following periods (that is to say) :—

Approval of
plans to be
void after
certain in-
tervals.

As to plans deposited after the passing of this Act within two years from the date of such deposit ;

As to plans deposited before the passing of this Act within two years from the passing of this Act :

And at the expiration of those respective periods fresh notice and deposit of plans shall unless the Council otherwise determine be requisite.

(2) The Council shall give notice of the provisions of this section to every person intending to lay out any street or to erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or the erection of which building shall not have been commenced

A.D. 1903. — and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

Retention
of plans de-
posited with
Council.

75. The Council may retain any drawings plans elevations sections and written particulars description or details deposited with them in pursuance of any enactment for the time being in force in the district or any byelaw thereunder respectively.

No buildings
allowed until
street formed.

76. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Intersecting
streets.

77. No street shall be laid out for a length of more than one hundred and twenty yards without an intersecting street Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Council may
declare where
streets begin
and end.

78. The Council may by resolution declare the points or limits at or within which any new street is to be taken as beginning or ending.

Trees and
shrubs over-
hanging
streets.

79. Where any tree hedge or shrub overhangs any public footpath so as to obstruct or interfere with the light from any public lamp or to interfere with the free passage of passengers along such footpath the Council may at any time serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him within seven days after the service of the notice to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance with the notice may themselves carry out its requisitions doing no unnecessary damage.

Deposit of
building
materials and
excavations
not to be
made with-
out consent.

80. It shall not be lawful for any person without the consent of the Council to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up any excavation (as the

case may be) when required by the Council and if any person fail to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding forty shillings and the Council may remove any such materials rubbish or thing or fill up such excavation as the case may be and recover the expenses from the offender.

A.D. 1903.

81. Every person desirous of forming a communication for horses or vehicles across any footway so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Council and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the reasonable satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise and if any person drives or permits or causes to be driven any horse or vehicle across any footway unless and until such a communication as aforesaid has been so made he shall for each offence be liable to a penalty not exceeding forty shillings.

Crossings for horses or vehicles over footways.

82.—(1) No new building shall without the approval of the Council be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance Provided that the approval of the Council shall not in the case of the rebuilding of any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property In determining the height of a building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the parapet or to the eaves of the roof as the case may be In the case of a gable facing the street the measurement shall be to a point halfway between the level of the eaves and the ridge In the case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves.

Height of buildings.

(2) In case any building is after the passing of this Act erected or raised to a greater height than any adjoining building

A.D. 1903. — and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

(3) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Byelaws as to building materials.

83. The Council may make byelaws with respect to the materials with which new buildings shall be constructed and with respect to the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings.

Continuation of street to be deemed new street.

84. Every continuation of an existing street shall be deemed a new street.

Council may require enlarged sewer.

85. If in any new street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

As to separate sewers.

86. Where under the provisions of the Public Health Acts or this Act the Council have power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively and the Council may if such separate sewers have been provided from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only and where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for

the provisions of this section have been sufficient to effectually drain such house or premises the Council shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply. A.D. 1903.

87. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer and the surveyor shall cause the ground to be closed and any damage done to be made good as soon as can be and the expense of the work shall be defrayed by the Council. Council may require old drains to be laid open for examination by surveyor before communicating with sewers.

88. From and after the passing of this Act—

- (a) The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;
- (b) The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;
- (c) The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;
- (d) The making of any addition to any existing building by raising any part thereof or making any projection therefrom but only so far as regards such addition ; and
- (e) The roofing or covering over of any open space between walls or buildings ;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a “ new building.”

89.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a plan drawn to a convenient As to temporary and movable buildings.

A.D. 1903. — scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within thirty-one days after the delivery of the plan and section and specification signify in writing their approval or disapproval of the proposed building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such proposed building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Council or before the expiration of the said thirty-one days without such approval or is in any respect not in conformity with the approved plan section and specification and with any condition attached by the Council to their approval the person who commenced erected or set up such building or if such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty not exceeding forty shillings and to a daily penalty of the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered from the owner of the building or from the person commencing erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(a) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district with respect to new buildings and any tent not remaining for more than seven days ;

(b) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so pulled down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about

the pulling down or removal of the same may be recovered from the owner of the building or from the person erecting or setting up the same at their discretion ; A.D. 1903.

- (c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light ;
- (d) Structures or erections erected or set up upon the premises of any railway company and used for the purposes of or in connexion with the traffic of any railway company.

90. When a temporary or movable building is pulled down or removed by the Council under the powers of the last preceding section the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in and towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance to the owner of such building.

Power to sell materials of temporary and movable buildings.

91. Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hydropathic establishment boarding-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Means of escape from buildings in case of fire.

Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

92. Nothing in this Part of this Act or in any byelaw made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as part of or in connexion with their railway under any Act of Parliament.

Exemption of buildings belonging to railway companies.

PART IX.

SANITARY PROVISIONS.

93. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of

Reconstruction of drains.

A.D. 1903. the Council except in accordance with the provisions of the byelaws and regulations relating to the drainage of new buildings.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

Cleansing of
cisterns.

94. The Council may make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles used for storing water used or likely to be used by man for drinking or domestic purposes or for manufacturing drink for the use of man.

Provisions
as to houses
without
proper water
supply.

95. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Urinals to be
attached to
refreshment
houses.

96. Where any inn public-house beer-house eating-house refreshment room theatre or other place of public entertainment built before or after the passing of this Act has no urinal belonging or attached thereto the Council may by notice in writing require the owner of such inn public-house beer-house eating-house refreshment room theatre or other place of public entertainment to provide and maintain on the premises in a position to be specified in the notice a urinal or urinals and shall keep the same in good order and condition to the satisfaction of the Council. Any person who fails after a period of twenty-eight days from such notice to comply therewith shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding ten shillings. Provided that a refreshment room or hotel belonging to a railway company shall not be deemed to be an inn public-house beer-house eating-house or other place of public entertainment within the meaning of this section.

Council may
require re-
moval or
alteration of
urinals &c.

97. If any urinal or closet now or hereafter erected in or opening on any street shall in the opinion of the Council be so placed or constructed as to be a nuisance or offensive to public decency the Council by notice in writing may require the owner to remove the same. Any such owner who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings. Provided that nothing in this section contained shall extend or apply to any urinal or convenience now or hereafter to be erected by any railway company at or within any railway station or station yard.

98.—(1) Notwithstanding anything in the Public Health Acts the Council may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the person by whom plans relating to the new building are deposited require that such new building shall be provided with proper and sufficient waterclosets.

A.D. 1903.
Council may require waterclosets to new buildings.

(2) Any person offending against any requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

99. The owner of every dwelling-house may be required by the Council to provide galvanised iron dust-bins or tubs in lieu of ashpits and such dust-bins or tubs shall be of such size and construction as may be approved by the Council and any owner who fails within fourteen days after notice given him to comply with the requirements of the Council shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dust-bins or tubs in use at the commencement of this Act so long as the same are of suitable size and in proper order and condition.

Regulation
pails and
tubs for
ashpits.

100. If any trade or garden refuse or any building materials or other materials or rubbish of a like description be deposited in any dust-bin or tub the Council may make a reasonable charge for the removal of the same which charge shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily.

Charge for
emptying
ashpits of
trade refuse.

101. The Council may either in their own name or in the name of any other person concerned or aggrieved with his consent take such proceedings by indictment action or otherwise as they may deem advisable for the purpose of preventing obstruction of any watercourse or outfall for water within the district or for the removal of any obstruction from any watercourse or outfall for water.

Council may
take proceedings for
preventing obstructions
in water-courses.

102. The powers of the Council under section 39 of the Public Health Act 1875 shall extend to authorise them to provide and maintain closet accommodation urinals and lavatories in or under any street repairable by the inhabitants at large or in the recreation grounds for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any closet accommodation or of any lavatory so provided by the Council and to make byelaws for the management of such closet

Public conveniences
and lavatories.

A.D. 1903. — accommodation urinals and lavatories and as to the conduct of persons frequenting the same and to let any such closet accommodation and lavatories for such periods and upon and subject to such terms and conditions as they may think fit.

PART X.

INFECTIOUS DISEASE.

Persons engaged in washing or mangling clothes to furnish lists of customers in certain cases.

103. Whenever it shall be certified to the Council by the medical officer that it is desirable with a view to prevent the spread of infectious disease that he should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Council may require such person to furnish to them a full and complete list of the names and addresses of the customers for whom such person washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Council shall pay to him or her for every such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Articles of bed and body clothing to be purified.

104. Where on the certificate of the medical officer it appears to the Council that any articles of bed or body clothing in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may cause any such articles of bed or body clothing in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

The Council shall reasonably compensate the owner for any articles so destroyed and for any other damage sustained by him.

Prohibition on infected person carrying on business.

105. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread the infectious disease and if he does so he shall be liable to a penalty not exceeding forty shillings.

106. A dairyman supplying milk within the district shall notify to the Council all cases of infectious disease among persons engaged in or in connexion with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

A.D. 1903.

Dairymen to notify infectious disease existing among their servants.

107. Whenever it shall be certified to the Council by the medical officer that the outbreak or spread of infectious disease is in the opinion of such medical officer attributable to the milk supplied by any dairyman the Council may require such dairyman to furnish to them within a time to be fixed by them a full and complete list of the names and addresses of all his customers within the district and such dairyman shall furnish such list accordingly and the Council shall pay to him for every such list the sum of sixpence for every twenty-five names contained therein and every person who shall wilfully or knowingly offend against this enactment shall for such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Dairymen to furnish lists of customers in certain cases.

108.—(1) Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Provisions for prevention of tuberculosis.

(2) Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

(3) Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is. Any dairyman failing to give such notice as required by this subsection shall be liable to a penalty not exceeding forty shillings.

(4)—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district.

A.D. 1903.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

(5)—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this subsection may in all respects be exercised in the case of such dairy Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon

for all or any of the purposes of this subsection and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this subsection shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Council or the medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(G) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this subsection.

(I) The dairyman may appeal against an order of the Council under this subsection or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof to the dairyman and the clerk of the Council not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they may deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal

A.D. 1903. the order shall remain in force unless previously withdrawn by the Council.

(6) If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order. The court or Board of Agriculture may determine and state whether the order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

(7) Offences under this section may be prosecuted and penalties may be recovered by the Council before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

(8) All expenses incurred by the Council in carrying into execution the provisions of this section shall be chargeable upon the district fund and general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

(9) This section may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

Compensa-
tion to
dairyman.

109. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons

residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate. A.D. 1903.

110. Whenever any scholar who attends any school within the district shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith send notice thereof to the medical officer and shall furnish to the Council at their request a list of the pupils attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings and the Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five pupils named therein. Principal of school to furnish list of pupils in certain cases.

111. The medical officer may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection. Power to medical officer to examine school children.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

112. No person shall return to any public or circulating library any book which has been to his knowledge exposed to infection from any infectious disease but any person having in his possession such a book belonging to a public or circulating library shall at once give notice that it has been exposed to infection to the inspector of nuisances of the Council who shall cause the same to be disinfected and then returned to the library. If any Protection against infection of books in public libraries.

A.D. 1903. — person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Council may pay expenses of person in hospital.

113. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may if they think fit themselves pay the expenses arising out of the reception and maintenance of such person.

Byelaws regulating hospitals.

114. The Council may make byelaws for regulating the admission to and discharge of patients from any hospital for infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Council.

Power to provide nurses.

115. The Council may if they think fit provide or contract with any other person to provide nurses for attendance upon any person suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse so provided.

Compensation to persons ceasing employment.

116. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Public notice to be given of provisions of this Part of Act.

117. Public notice of this Part of this Act shall be given forthwith after the passing of this Act by handbills and by advertisement in two newspapers published or circulating in the district and also by a notice affixed outside the offices of the Council and by such further means as the Council deem reasonable for conveying notice of the provisions of this Part of this Act to persons affected or likely to be affected thereby and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix. A copy of the newspapers containing the advertisement shall be conclusive evidence that the provisions of this section as to the advertisement have been complied with.

PART XI.

POLICE.

Provisions as to hoardings and other structures used for

118.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(2) It shall not be lawful after the passing of this Act to erect any hoarding or similar structure to be used either wholly or

partly for advertising purposes in or abutting on or adjoining any street to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the continuance and maintenance of such hoarding or similar structure as the Council may determine.

A.D. 1903.
advertising
purposes.

(3) The owner or other person using any such hoarding wall or similar structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any papers affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such papers.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent given or condition made under this section may be under the hand of the clerk of the Council or the surveyor.

(6) Any person aggrieved by the refusal of the Council to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after such refusal or after the giving of such consent (as the case may be) provided he give not less than twenty-four hours notice in writing of such appeal and the grounds thereof to the clerk of the Council and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable summarily as a civil debt.

119. It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed Provided that in any of the following cases a licence of the Council under this section shall become void (namely):—

Regulations
as to sky
signs.

(1) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor :

A.D. 1903.

- (2) If any change be made in the sky sign or any part thereof:
- (3) If the sky sign or any part thereof fall either through accident decay or any other cause:
- (4) If any addition or alteration be made to or in the house building or erection on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof:
- (5) If the house building or erection over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed.

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to the recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Restriction
on advertis-
ing vehicles.

120. It shall not be lawful in any street in the district to use any vehicle or framework on wheels exclusively or principally for the purpose of displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit. Any person aggrieved by the refusal of the Council to grant such consent or by the terms and conditions imposed may appeal to a court of summary jurisdiction held for the district after the expiration of two clear days after the decision of the Council is notified to him provided he give twenty-four hours' notice of such appeal and the grounds thereof to the clerk of the Council and the court shall have power to make such order as to them may seem fit and to award costs such costs to be recoverable summarily as a civil debt.

Prevention
and removal
of projec-
tions over
streets.

121. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 shall with respect to the district extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before

or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street as if the same were included among the obstructions or projections specified in the said section 69. A.D. 1903.

122. The Council may prescribe the streets in which and the manner according to which the leading or driving of animals shall be permitted within the district. Provided that the route which it shall be lawful for the Council so to prescribe shall not be such as would prevent the passage of cattle between any market and any railway station in the district or any place beyond the boundary of the district when such animals are merely passing between such market and railway station or other place aforesaid and the Council shall be bound to allow at all times a reasonably short and efficient route or routes for the passage of such animals: As to leading or driving animals.

Provided also that any such directions shall only operate between the hours of eight in the morning and nine in the evening and shall not prevent the owner of any animals driving the same to his own premises and nothing in this enactment contained shall authorise the Council to interfere with the driving of any animals to any duly licensed slaughter-house.

123. Every part of the seashore and recreation grounds and any unfenced ground adjoining or abutting upon any street or highway shall for the purposes of the Vagrancy Act 1824 and any Act amending the same be deemed to be a public place. Certain places to be public places under Vagrancy Acts.

124. The seashore and recreation grounds shall be deemed to be streets for the purposes of sections 24 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:— Seashore and recreation grounds to be deemed streets for purposes of certain offences.

Every person who slaughters or dresses any cattle or any part thereof except in the case of any cattle overdriven which may have met with any accident and which for the public safety or other reasonable cause ought to be killed on the spot:

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution:

Every person who wilfully and indecently exposes his person:

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language:

A.D. 1903.

Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework :

Every person who throws or lays any dirt litter or ashes or night-soil or any carrion fish offal or rubbish on any street.

Power to license persons following certain callings.

125.—(1) The Council may grant to any person they think fit a licence to carry on the calling of luggage porter public messenger or commissionaire and may charge a fee of one shilling for any such licence.

(2) The Council may make byelaws for regulating the conduct of any persons so licensed and the charges to be made by them.

(3) Any such licence may be granted for a year or for any less period according as the Council may think fit and may be suspended or revoked or endorsed by the Council for a breach of such byelaws or whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public.

(4) Every such licence whensoever issued shall expire on the thirty-first day of March next following the date of its issue and may contain conditions as to the badge which the holder of any such licence shall wear.

(5) If any person while unlicensed represents himself to be licensed or wears any badge for the purpose of holding himself out as licensed to carry on any of the callings specified in this section he shall be liable to a penalty not exceeding twenty shillings.

PART XII.

PUBLIC VEHICLES.

Powers of inspector of public vehicles.

126. Any person appointed by the Council in writing may examine all hackney carriages and other public vehicles plying for hire within the district and may see that the laws and byelaws relating to such public vehicles are duly observed If any proprietor driver conductor or other person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings.

As to public vehicles taken at railway stations.

127. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Council with respect to public vehicles shall be as fully applicable in all respects to public vehicles within the district conveying passengers to or from any

railway station within the district as if such railway station were a public stand for public vehicles : A.D. 1903.

Provided always that the provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles.

PART XIII.

FINANCIAL.

128.—(1) The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say) :— Power to borrow.

- (A) For the purchase of lands for and the construction and extension of waterworks the sum of twelve thousand pounds ;
- (B) For the provision of further expenditure in connexion with the purchase of the undertakings of the water company and the gas company under the Act of 1897 as in this Act recited the sum of six hundred and twenty-seven pounds sixteen shillings and threepence ;
- (C) For the purchase of lands for and for the construction and extension of gasworks the sum of seventeen thousand pounds ;
- (D) For the purchase of lands for and the construction of outfall sewers and works connected therewith the sum of six thousand pounds ;
- (E) For the purchase of lands for and the construction of works for purposes of sea water supply such sums as the Local Government Board may sanction ;
- (F) For paying the taxed costs charges and expenses of this Act as herein-after provided the sum requisite for that purpose :

And with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of the water and gas undertakings of the Council.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenues of any of their undertakings in connexion with which the moneys are borrowed and the district fund and general district rate.

A.D. 1903.

Mode of
raising
money.

129. The Council may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by issue of debentures debenture stock or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act with respect to the sinking fund to be provided for the repayment of moneys raised under this Act shall apply to any money raised under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act.

Certain
regulations
of Public
Health Act
as to borrow-
ing not to
apply.

130. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act and any sums they may borrow for electric lighting purposes shall not be reckoned.

Provisions
of Public
Health Act
as to mort-
gages to
apply.

131. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted under this Act (that is to say):—

Section 236 Form of mortgage.

Section 237 Register of mortgages.

Section 238 Transfer of mortgages.

Section 239 Receiver may be appointed in certain cases.

Periods for
payment off
of money
borrowed.

132. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed period”) following (that is to say):—

As to moneys borrowed for the purposes (A) and (B) mentioned in the section of this Act the marginal note whereof is “Power to borrow” within fifty years from the date or dates of borrowing the same:

As to moneys borrowed for the purpose (B) mentioned in the said section within forty years from the passing of the Act of 1897:

As to moneys borrowed for the purpose (C) mentioned in the said section within thirty years from the date or dates of borrowing the same:

As to moneys borrowed for the purpose (F) in the said section mentioned within five years from the date or dates of borrowing the same:

As to moneys borrowed with the approval of the Local Government Board within such period as they may sanction.

Mode of
payment off
of money
borrowed.

133. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly

or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund. A.D. 1903.

134. If the Council determine to pay off by means of a sinking fund any moneys borrowed under the authority of this Act the following regulations shall be observed :— Regulations as to sinking fund.

The Council in every year shall appropriate and set apart out of the rate and revenue on the security of which such moneys shall have been borrowed such equal annual sums as will with the accumulations thereof by way of compound interest at not exceeding three per centum per annum with yearly rests be sufficient to pay off the whole of the principal moneys borrowed on such security under this Act and repayable by a sinking fund within the prescribed period :

The rate of accumulation on which the amounts paid to the sinking fund are based is herein-after referred to as “ the prescribed rate ” :

Provided as follows (that is to say) :—

- (A) The yearly sums so to be appropriated and set apart shall be invested from time to time and accumulated in the way of compound interest by investing the same and the dividends interest and annual income thereof respectively in statutory securities the Council being at liberty from time to time to vary and transpose such investments Provided that if in any year the income arising from the investments of the sinking fund does not equal the prescribed rate of accumulation any deficiency shall be made good out of the rate and revenue from which the annual payments to such fund are made and that if in any year such income exceeds the prescribed rate of accumulation any excess may be applied in reduction of the annual payments which would otherwise be required to be made to such fund ;
- (B) The Council may at any time apply the whole or any part of the sinking fund in or towards the repayment of the borrowed moneys for the repayment whereof the sinking fund was set aside in such order and manner as they deem proper Provided that in such case they pay into such sinking fund in each year afterwards and accumulate as herein-before prescribed until the whole of the borrowed moneys to which such sinking fund is applicable are discharged a sum equal to the interest

A.D. 1903.

produced by the sinking fund or part thereof so applied at the rate per centum per annum on which the annual payments to the sinking fund are based. Provided also that whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the repayment of which it was set aside the Council may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums required to be paid thereto.

Return
respecting
sinking fund
to Local
Government
Board.

135.—(1) The clerk of the Council shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder or in regard to the electric lighting undertaking of the Council under the Public Health Acts or otherwise and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk of the Council showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk of the Council shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903.

136. The Council shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow : Power to re-borrow.

Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

137. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Council shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or Council not to regard trusts.

A.D. 1903. — transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Protection
of lender
from inquiry.

138. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Saving for
existing
charges.

139. Nothing in this Act shall prejudicially affect any charge on the revenue funds and rates or the estates and property of the Council subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue funds rates estates and property subject to his charge as if this Act had not passed.

Application
of borrowed
moneys.

140. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable.

Application
of moneys
arising from
sale of lands.

141. The Council shall apply all moneys from time to time received by them in respect of any sales exchanges or disposition of lands acquired by them under this Act or by way of fine or premium on any lease of such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council and such proceeds shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Audit of
accounts. 

142. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Expenses of
execution of
Act.

143. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or are otherwise provided for) shall be paid out of the district fund and general district rate.

PART XIV.

A.D. 1903.

MISCELLANEOUS.

144.—(1) The Council may if they think fit grant a gratuity of any sum not exceeding one year's pay to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

Power to grant gratuities and pensions in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

145. The provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act Provided that no byelaws affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade has been given thereto Provided also that the Secretary of State shall be the confirming authority for byelaws made under the sections of this Act the marginal notes whereof are respectively "Byelaws as to seashore" and "Byelaws as to promenades."

General provisions as to byelaws.

146. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute do or alter any work act or thing in default of an owner or occupier and in the absence of misconduct or negligence on the part of the Council or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing doing or altering of such work act or thing the amount thereof when paid shall be added to and be deemed to be part of the expenses payable by such owner or occupier.

In executing works for owner Council to be indemnified against damages in absence of negligence.

147.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by Local Government Board.

A.D. 1903.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Authenti-
cation and
service of
notices.

148.--(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Compensa-
tion how to
be deter-
mined.

149. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Act 1875.

As to
appeal.

150. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

Saving for
indictments.

151. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished for the same offence under this Act and also under any other Act.

152. Save as otherwise expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof or under any local Act or Order or byelaw made thereunder may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

A.D. 1903.
Recovery of penalties.

153. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of any local Act or Order or byelaw made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk of the Council or by any police officer acting for or within the district.

Informations by whom to be laid.

154. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Council be paid to the treasurer of the Council and be by him carried to the credit of the district fund.

Penalties to be paid over to treasurer.

155. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Council or liable to any rate.

Judges not disqualified.

156. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman or the clerk of the Council shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of appointments.

157. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown and in particular nothing shall authorise the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments

Saving rights of Crown.

A.D. 1903. subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give).

Saving for
King's Lynn
Conservancy
Board.

158. Nothing in this Act contained shall take away lessen prejudice or interfere with any of the rights powers authority liberties and privileges of the King's Lynn Conservancy Board.

Saving for
Eastern Sea
Fisheries
District.

159. Nothing in this Act contained shall exempt the Council from the provisions of any byelaw made by the local fisheries committee for the Eastern Sea Fisheries District and nothing in this Act contained shall take away lessen prejudice or interfere with any of the rights powers authority and privileges of such committee.

Costs of Act.

160. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the obtaining of the resolution of owners and ratepayers aforesaid as taxed by the taxing officer of the House of Lords or the House of Commons shall be paid by the Council primarily out of the general district rate but ultimately out of the moneys to be borrowed under the authority of this Act.

The SCHEDULE referred to in the foregoing Act. A.D. 1903.

GAS LANDS.

A piece or pieces of land in the parish of New Hunstanton in the county of Norfolk adjoining the site of the existing authorised gas lands of the Council as set forth in the Act of 1897 bounded on the north partly by the before-mentioned gasworks and partly by land belonging or reputed to belong to Hamon le Strange on the east and south by land belonging or reputed to belong to Hamon le Strange and on the west by the new road leading from the railway station to the shore which said land belongs or is reputed to belong partly to the Council and partly to Hamon le Strange and is in the occupation partly of the Council and partly of the representatives of the late Richard Sharpe.

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